

25PSCV00859 25PSCV00859

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Case Number: 25PSCV00859 Hearing Date: September 10, 2026 Dept: O

Tentative Ruling

DEMURRER

TO PLAINTIFF'S

SECOND AMENDED COMPLAINT BY DEFENDANTS RICARDO PAEZ AND LINDA

NIETO is SUSTAINED without leave to amend.

Background

This case

arises from a motor vehicle involving three minors (Plaintiff Iris, Richard Ocampo, and Jason Cruz) that happened on August 14, 2023.

On

March 12, 2025, Plaintiff IRIS TONG, a minor by and through her Guardian Ad Litem FEI LIU filed suit against Defendants RICHARD BRIAN PAIZ, an individual; FIE HONG LIU.

On

December 19, 2025, a First amended complaint (FAC) was filed against Defendants Richard Brian Paez, Ricardo Paez, Linda Nieto, Jason Ocampo Cruz, Jeffrey Cayanan Cruz, and Arlene Ocampo for (1) Motor Vehicle and (2) General Negligence.

On

May 4, 2026, the court granted the MTS by RICARDO PAEZ AND LINDA NIETO and sustained the demurrer filed by JASON OCAMPO CRUZ, JEFFREY CAYANAN CRUZ, AND ARLENE OCAMPO.

On

June 2, 2026, a second amended complaint (SAC) was filed.

On

August 6, 2026, the instant demurrer was filed.

On

August 26, 2026, an opposition was filed.

To

date, as of September 8, 2026, no reply is on file (due 5 court days before the hearing).

Discussion

Plaintiff

alleges statutory liability against RICARDO PAEZ and LINDA NIETO (hereinafter, "Defendants") for violating California Vehicle Code sections 1714.1, 17701, and 17707. Defendants argue that the SAC fails to allege willful misconduct for under California Vehicle Code section 1714.1; and as for the latter two statutes, those sections require a minor's driver's license application but the SAC itself alleges that the minor Richard did not have a driver's license.

The

court agrees.

Civil code section 1714.1 states in part, "(a) Any act of willful misconduct of a minor that results in injury or death to another person or in any injury to the property of another shall be imputed to the parent guardian having custody and control of the minor for all purposes of civil damages, and the parent or guardian having custody, and control shall be jointly and severally liable with the minor for any damages resulting from the willful misconduct." As noted by the court in *Doe v. United States Youth Soccer Assn., Inc.* (2017) 8 Cal.App.5th 1118, "willful misconduct is not marked by a mere absence of care. Rather, it involves a more positive intent actually to harm another or to do an act with a positive, active and absolute disregard of its consequences." (Id. at p. 1140, internal citation and quotations omitted.)

In

opposition, Plaintiffs do not point to allegations that demonstrate willful misconduct but only argue that such determination exceeds the scope of a demurrer. Not necessarily. Even on a demurrer, a plaintiff must plead ultimate facts, not conclusive facts. And Plaintiff's own citation to *Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 572 but supports the well-established need that enough facts to show some relief be pled, but that has not been here, nor can any inference of willful misconduct be drawn from the allegation that Richard Paez drove the car at an unsafe speed.

As

for California Vehicle Code Sections 17701 and 17707, Plaintiffs seemingly argue that a learner's permit should be treated the same as a driver's license. (See Opp. p. 6-7 ["While it is undisputed that Richard did not have a driver's license, he did have a learner's permit which means his parents would have signed the application."].) But the two are different, regardless of if the application for an original driver's license incorporates the issuance of an instruction permit as an initial step.

Conclusion

With

that, the court SUSTAINS the demurrer. Since the court already gave leave to amend and the amendments do not cure the defects, leave to amend is denied.